

6.	Contreras vs. Hoag Memorial Hospital Presbyterian 26-01542885	1. Demurrer to Complaint 2. Case Management Conference Defendants Hoag Memoria Hospital Presbyterian and Hospitality & Environmental Labor Partners, LLC’s DEMURRER to the Complaint is OVERRULED. Defendants demur to each of the six causes of action alleged in the Complaint. First Cause of Action - Disability Discrimination The FEHA makes it an unlawful employment practice to discharge a person from employment or discriminate against the person in the terms, conditions, or privileges of employment, based on “race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation.” (Govt. Code § 12940(a).) To establish a prima facie case of discrimination, a plaintiff “must generally provide evidence that: (1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (<i>Dinslage v. City and County of San Francisco</i> (2016) 5 Cal.App.5th 368, 378.) Defendants argue that Plaintiff cannot pursue a claim for disability discrimination on the basis of an “actual” physical disability in the absence of factual allegations she was in fact disabled, and that the employer had knowledge of the employee’s disability. (See <i>Rope v. Auto-Chlor System of Washington, Inc.</i> (2013) 220 Cal.App.4th 635, 659.) A person is “physically disabled” if, among other things, the individual: (1) Has a physiological condition that both (a) affects a specific bodily system and (b) limits a major life activity; (2) Has a “record or history of” such a physiological condition; or (3) Is “regarded or treated by” the individual's employer as having, or having had, any condition that makes achievement of a major life activity difficult, or as having, or having had, a physiological condition that is not presently disabling, but that may become so.
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(Govt. Code § 12926, subd. (k)(1)(A), (B), (3), (4), (5).)

To proceed as a physically disabled person under the first prong of the statutory definition, Plaintiff must demonstrate his injury, or physical condition makes “difficult” the achievement of work or some other major life activity.

Here, the Complaint alleges Plaintiff “was completely health [sic] and did not need accommodations nor did she have any work restrictions in place.” (Complaint, ¶ 20.) Moreover, Plaintiff cannot prove Defendants knew about her disability as there is no allegation that Plaintiff told her employer about her medical condition, disability or need for accommodation. Therefore, Plaintiff cannot state a cause of action for disability discrimination.

Under the FEHA, however, even if an applicant or employee is not actually disabled, they can still state a claim if the applicant or employee is “regarded” or “treated” by the employer “as having, or having had, any physical condition that makes achievement of a major life activity difficult.” (*Gelfo v. Lockheed Martin Corp.* (2006) 140 Cal.App.4th 34, 53.)

The Complaint alleges that her job offer was rescinded because “she failed her physical health assessment due to the restrictions from her 2004 closed workers compensation case.” (Complaint, ¶ 20.) Such allegation satisfies the third prong of the statutory definition for being “physically disabled.”

Plaintiff also alleges she was qualified for the position she sought and had been performing the same job duties for approximately three years without issue. (Complaint, ¶ 20.) She further alleges she was denied the position due to her perceived disability. (*Ibid.*)

Accordingly, Plaintiff has alleged sufficient facts to state a cause of action for disability discrimination and the demurrer to the first cause of is OVERRULED.

Second Cause of Action – Failure to Accommodate

To prove her claim of failure to accommodate, Plaintiff must prove: (1) she was employed by Defendant; (2) she had a disability; (3) Defendant knew of the disability; (4) Plaintiff could perform the essential duties of his position with a reasonable accommodation; (5) Defendant failed to provide reasonable accommodation; and (6) resulting harm. (CACI 2541.)

Defendants argue because Plaintiff alleges she was not disabled and did not require an accommodation, she cannot state a claim for failure to accommodate.

The court in *Gelfo*, supra, held that “employers must reasonably accommodate individuals falling within any of FEHA’s statutorily defined “disabilities,” including those “regarded as” disabled, and must engage in an informal, interactive process to determine any effective accommodation. (*Gelfo*, supra, 140 Cal.App.4th at 55-61.)

Therefore, because Defendants “regarded” Plaintiff as disabled, she can also state a cause of action for failure to accommodate. Accordingly, the demurrer to the second cause of action is OVERRULED.

Third Cause of Action – Failure to Engage in the Interactive Process

To establish her claim that Defendant failed to engage in the interactive process, Plaintiff must prove: (1) she was employed by Defendant; (2) she had a disability known to Defendant; (3) he requested a reasonable accommodation so that he could perform the essential job requirements; (4) she was willing to participate in the interactive process; (5) Defendant failed to engage in the interactive process; and (6) resulting harm. (CACI No. 2546.) If the interactive process fails, liability "for the failure rests with the party who failed to participate in good faith." (*Gelfo*, supra, 140 Cal.App.4th at 54.)

Gelfo also held that an employer must engage in an informal dialogue to determine effective accommodations with an applicant or employee regarded as disabled. (Id. at 61.) The employer in *Gelfo* argued that an employer owes no duty to engage in a “futile” discussion with an applicant or employee who is merely “regarded as” disabled and to whom no duty of reasonable accommodation is or will be owed. The court rejected this for the same reasons it rejected the argument an employer need not accommodate an employee who is “regarded as” disabled.

Therefore, Plaintiff can state a cause of action for failure to engage in the interactive process. Accordingly, the demurrer to the third cause of action is OVERRULED.

Fourth Cause of Action – Failure to Prevent Discrimination

Defendants argue that because there is no actual discrimination or retaliation under FEHA, Plaintiff cannot state a claim for failure to prevent discrimination/retaliation.

But as stated above and below, Plaintiff has stated a cause of action for discrimination and retaliation. Defendants make no other arguments with respect to this cause of action.

Accordingly, the demurrer to the fourth cause of action is **OVERRULED**.

Fifth Cause of Action – Retaliation

“To establish a prima facie case of retaliation, the plaintiff must show (1) he or she engaged in a protected activity; (2) the employer subjected the employee to an adverse employment action; and (3) there exists a causal link between the protected activity and the employer's action.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.)

Plaintiff alleges she engaged in protected activities by informing Defendants of her disability and by requesting a reasonable accommodation to treat and/or recover from her disabilities. (Complaint, ¶ 58.)

Defendants assert that notifying an employer of one’s medical status, even if such medical status constitutes a disability under the FEHA, does not fall within the protected activity in subdivision (h) of section 12940. (*Moore v. Regents of Univ. of Calif.* (2016) 248 Cal.App.4th 216, 247.) However, it is unlawful for an employer to retaliate or otherwise discriminate against a person for requesting an accommodation under the FEHA regardless of whether the request was granted. (Govt. Code § 12940(m)(2).)

Here, Plaintiff has alleged she requested an accommodation from Defendants and thereafter was terminated because of her perceived disability. This is sufficient to state a claim for retaliation.

Accordingly, the demurrer to the fifth cause of action is **OVERRULED**.

Sixth Cause of Action – Wrongful Termination in Violation of Public Policy

The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff's employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm. (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 154.) However, where a common law claim for wrongful termination in violation of public policy is derivative of plaintiff's statutory claim for violation of the FEHA, the public policy claim will either rise or fall with the FEHA claim. (See *Hanson v. Lucky Stores, Inc.* (1999) 74 Cal.App.4th 215, 229.)

Because Plaintiff has stated a claim for discrimination and retaliation under the FEHA, she has also stated a claim for wrongful termination in violation of public policy.

Accordingly, the demurrer to the sixth cause of action is **OVERRULED.**

Seventh Cause of Action – Failure to Rehire

Defendant argues Plaintiff cannot state a cause of action for failure to rehire because she admits she was healthy and did not need any accommodations.

As stated above, Plaintiff has stated a cause of action for discrimination, retaliation and wrongful termination in violation of public policy. Therefore, she can state a claim for failure to rehire.

Accordingly, the demurrer to the seventh cause of action is **OVERRULED.**

Defendant is ordered to file an answer within 30 days of this ruling.

The Case Management Conference is CONTINUED to November 23, 2026, at 9:30 a.m. in Department C12.

Moving Defendant to give notice of this ruling.